

Notice of the National Commission for Data Protection regarding
Bill No. 7992 concerning the rights of minor victims and
witnesses in the context of criminal proceedings and amending:

1° the Penal Code; 2° the Code of Criminal Procedure; 3° the amended law of August 10, 1991 on the
legal profession

Deliberation No. 68/AV37/2023 of July 21, 2023

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or "CNPDP") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

2. Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a proposal for a legislative measure to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

3. Furthermore, in accordance with Article 8.3° of the aforementioned law of August 1, 2018, transposing into national law Article 46.1.e) of Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of the prevention, investigation, detection, or prosecution of criminal offenses, or the execution of criminal penalties, and on the free movement of such data, and repealing Framework Decision 2008/977/JHA of the Council, the CNPD "advises the Chamber of Deputies, the Government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to the processing of personal data."

4. By letter dated April 1, 2022, the Minister of Justice invited the National Commission to express its opinion on Bill No. 7992 concerning the rights of minor victims and witnesses in the context of criminal proceedings and amending: 1° the Penal Code; 2° the Code of Criminal Procedure; 3° the amended law of August 10, 1991 on the legal profession. (hereinafter referred to as the "Bill").

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5. The bill is part of a broader reform of youth law, consisting of three bills¹ and a draft grand-ducal regulation². The bill under review aims, in particular, to establish a juvenile criminal law and seeks, according to the explanatory memorandum, to enshrine, "while drawing its sources from Luxembourg's criminal procedure, [...] at the legislative level the fundamental principles regarding specific procedural guarantees for minors as provided by the Convention on the Rights of the Child adopted by the United Nations General Assembly on November 20, 1989" (hereinafter referred to as the "Convention"), ratified in Luxembourg by a law of December 20, 1993. Incidentally, the bill intends to transpose the aspects related to the new juvenile criminal regime provided by Directive EU/2016/800 of the European Parliament and of the Council of May 11, 2016, concerning the establishment of procedural guarantees for children who are suspects or accused persons in criminal proceedings (hereinafter referred to as the "Directive EU/2016/800") and Directive 2013/48/EU of the European Parliament and of the Council of October 22, 2013, concerning the right of access to a lawyer in criminal proceedings and in proceedings related to the European arrest warrant (hereinafter referred to as the "Directive 2013/48/EU").

6. This opinion will limit its observations to issues related to respect for privacy and the protection of

personal data raised by the bill.

7. It should be noted that the judicial control authority, established by Article 40 of the law of August 1, 2018, on the protection of individuals with regard to the processing of personal data in criminal matters as well as in matters of national security, is the competent authority to oversee the processing operations of personal data carried out by the judicial courts, including the public prosecutor's office, and by the administrative courts in the exercise of their judicial functions. Therefore, these data processing operations do not fall under the jurisdiction of the CNPD, pursuant to Article 5 of the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection and Article 39 of the law of August 1, 2018, in criminal matters. Outside of this exception, the National Commission remains the competent authority to monitor and verify compliance with the provisions of the aforementioned law as well as the GDPR. While it understands that certain provisions of the bill under review relate to processing falling under the jurisdiction of the judicial control authority, the CNPD does not intend to make an arbitrary distinction in this opinion based on the data controller processing the data in question and intends to comment on all the provisions.

1 In addition to the bill under review, this includes Bill No. 7994 on assistance, support, and protection for minors, young people, and families, and amending: 1. the Labor Code; 2. the amended law of March 7, 1980, on the judicial organization; 3. the amended law of June 16, 2004, reorganizing the State socio-educational center; 4. the amended law of July 4, 2008, on youth; 5. the amended law of December 10, 2009, concerning the involuntary hospitalization of individuals with mental disorders; 6. the law of August 1, 2019, concerning the state institute for child and youth assistance; and repealing 1. the amended law of August 10, 1992, on the protection of youth; 2. the amended law of December 16, 2008, on child and family assistance, as well as Bill No. 7991 on the introduction of juvenile criminal law and amending: 1° the Code of Criminal Procedure; 2° the amended law of March 7, 1980, on the judicial organization; 3° the amended law of March 17, 2004, concerning the European arrest warrant and the procedures for extradition between Member States of the European Union; 4° the law of July 20, 2018, reforming the penitentiary administration.

2 Draft grand-ducal regulation on the organization of juvenile detention regimes.

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regard des parties présentes » et, d'autre part, que « l'audition peut avoir lieu dans un lieu adapté à la situation du mineur ». La CNPD souligne l'importance de garantir un environnement propice à l'audition du mineur, afin de ne pas altérer la qualité de son témoignage.

2. La prise en compte de l'âge et du développement de l'enfant

12. La CNPD rappelle que l'âge et le développement psychologique de l'enfant doivent être pris en compte lors de l'audition. Elle insiste sur le fait que les méthodes d'audition doivent être adaptées à l'âge et à la maturité de l'enfant, afin de garantir que son témoignage soit recueilli de manière fiable et respectueuse.

IV.

La protection des données personnelles

13. L'article 5 du projet de loi stipule que « les données à caractère personnel des mineurs victimes et témoins doivent être traitées de manière à garantir leur sécurité et leur confidentialité ». La CNPD souligne l'importance de cette disposition et rappelle que le traitement des données personnelles doit respecter les principes de minimisation et de limitation de la conservation, afin de protéger les droits des mineurs.

V.

Les droits des victimes

14. La CNPD note que le projet de loi reconnaît explicitement les droits des mineurs victimes et témoins, notamment le droit à l'information, le droit à la protection et le droit à l'assistance juridique. Elle souligne que ces droits doivent être garantis tout au long de la procédure pénale,

afin de garantir une justice équitable et respectueuse des droits des enfants.

VI.

Conclusion

15. En conclusion, la CNPD exprime son soutien aux objectifs du projet de loi n° 7992, tout en soulignant la nécessité de veiller à ce que les dispositions relatives à la protection des données personnelles et au respect des droits des mineurs soient pleinement intégrées et appliquées dans le cadre de la mise en œuvre de cette législation. La CNPD recommande également une évaluation régulière des impacts de la loi sur les droits des mineurs et sur la protection de leurs données personnelles.

the presence of their legal representatives" and on the other hand that "the competent judicial authority may decide that it is not in the best interest of the minor to be accompanied by their legal representatives." Furthermore, it should be noted that, according to the amendments made pursuant to Article 17 of the draft law, Article 48-1, paragraph 5, and Article 79-1, paragraph 5, of the Code of Criminal Procedure provide that the public prosecutor or the investigating judge may exclude the "legal representatives, [the] counsel, or [the] trusted person" of the minor during their hearing by a "contrary motivated decision taken [...] in the interest of the minor or in the pursuit of the truth." However, it seems problematic to foresee, as suggested by the wording proposed by the draft law regarding the aforementioned provisions of the Code of Criminal Procedure, the exclusion of the minor's counsel from a hearing.

12. The CNPD notes that according to Article 2, point 5°, of the draft law, the ad hoc administrator is appointed "by the judicial authority legally seized in case of a finding of a conflict of interest between the minor and the legal representatives regarding their best interest within the framework of this law." It suggests providing that an ad hoc administrator is also designated "when the child victim is not accompanied or is separated from their family," as recommended by Article 24, paragraph 1, letter b) of Directive 2012/29/EU of the European Parliament and of the Council of 25 October 2012 establishing minimum standards on the rights, support, and protection of victims of crime.

13. The National Commission suggests explicitly adding the possibility of being accompanied by their ad hoc administrator instead of the legal representatives when such a decision has been made regarding them under the aforementioned provisions of the Code of Criminal Procedure or Article 15 of the draft law. It further proposes to provide in Article 15 of the draft law the possibility of excluding the "trusted person" under the same conditions as for the exclusion of the legal representatives.

14. As indicated, the minor may be accompanied by a "trusted person" of their choice in accordance with Articles 4 and 5 of the draft law. Article 5 of the draft law defines the "missions of the trusted person," namely to "provide the minor with appropriate moral support [...]" and to "accompany the minor to any hearing or statement [...]" It is not specified whether the said trusted person can refuse this designation by the minor. The authors of the draft law indicate in the comments on the articles that the "concept of trusted person is directly inspired by the concept of 'support person' provided for in Articles 15 and following of the [model law on justice in cases involving child victims and witnesses of criminal acts]," developed by the United Nations Office on Drugs and Crime (UNODC) in cooperation with the United Nations Children's Fund (UNICEF) and the International Bureau for Children's Rights (hereinafter the "UN Model Law"). However, unlike Articles 15 to 17 of the UN Model Law, the latter remains largely silent on the procedure to be followed for designating the trusted person and does not clearly define the competencies and functions of the said person. Thus, in the said model law, by "support person" "we mean a specially trained person to assist a child throughout the justice process in order to prevent the risk of coercion, revictimization, or secondary victimization," and Article 15 of said instrument recommends that

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"[F]rom the beginning of the investigation and throughout the judicial process, child victims and witnesses receive support from a person with the necessary training and professional skills to assist

children of different ages and backgrounds and to communicate with them in order to prevent any risk of coercion, revictimization, and secondary victimization."

15. Furthermore, the UN model law echoes paragraph 24 of the Guidelines on Justice in Cases Involving Child Victims and Witnesses of Crime adopted by resolution 2005/20 of July 22, 2005, of the Economic and Social Council of the United Nations, also invoked by the authors, which states that "Child victims and witnesses should, from the time of the initial report and for as long as necessary, receive assistance from support persons such as specialists in matters relating to child victims and/or witnesses."

16. The CNPD therefore suggests that the authors of the draft law further clarify the procedure, the qualifications, and the role of the trusted person.

2. Examination of the Capacity to Testify

17. Article 7, paragraph 1, of the draft law provides for the possibility for the competent judicial authority to order an assessment regarding the capacity to testify of the minor "when there is doubt about the ability of the minor victim or witness to understand the proceedings or the questions posed to them or to understand the importance of telling the truth." The provision does not specify what type of examination or on what criteria the competent judicial authority should base its decision to order such an assessment. The commentary on the articles refers to the UN model law, but the provision under review does not incorporate either the procedural guarantees or the substantive guarantees that it advocates. In this regard, the CNPD suggests amending Article 7 of the draft law, particularly by specifying that "a psychological or psychiatric examination is not ordered to assess the child's competence unless it is established that there are compelling reasons to do so" and that "the questions are posed in a manner appropriate to the child, taking into account their age and maturity, and do not concern the issues at stake but only aim to determine whether the child is capable of understanding simple questions and responding truthfully."

18. Paragraph 2 of the said article then provides that "When the examination of the capacity to testify concludes that the minor victim or witness requires care, the competent judicial authority shall forward a copy of the file to the youth judge, who proposes measures of assistance, support, and protection or a medical or psychological examination for the minor, their parents, or their legal representatives, in accordance with the law of jj/mm/yyyy concerning assistance, support, and protection for minors, young adults, and families."

19. The CNPD wonders whether it would be appropriate to adapt this paragraph and provide for the referral to the ONE, in line with the logic of draft law No. 7994, instead of the referral to the youth judge. The ONE could then analyze the needs of the minor before referring to the youth judge, following the CNPD.

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the procedures provided for in the said draft law. However, the National Commission requests the authors to specify the documents to be transmitted to the juvenile judge or to the ONE. Indeed, the transmission should be limited to the elements necessary for care by the ONE and should, in principle, not cover the entirety of the criminal file, particularly with regard to respecting the confidentiality of the investigation and the principle of data minimization. Indeed, the said criminal file generally contains information and documents that do not concern the minor in question, for example, documents related to the alleged perpetrator or third parties. In this regard, it would be appropriate to adapt the present draft law in light of the amendments made to draft law No. 7991.

20. The National Commission also wonders whether the judicial authorities could request an analysis of the necessity of care for the minor victim or minor witness outside the cases where a competency examination to testify is conducted.

3. The recording of a minor's hearing

21. Article 17 of the draft law amends Article 48-1, paragraph 3, of the Code of Criminal Procedure by providing, according to the authors of the draft law, a "broader scope regarding the mandatory recording of hearings of minor victims or witnesses of certain offenses" and excluding the possibility "for the public prosecutor to refuse to proceed with a recording." Similarly, Article 158-1 of the Code of Criminal Procedure is amended to limit the number of hearings of the minor victim or minor witness. These amendments all aim to avoid the secondary victimization of the minor.

4. The taking of an oath and false statements by a child witness

22. Under Article 16 of the draft law, Article 225 of the Penal Code would provide that "[t]he provisions [...] relating to false statements [Articles 215 to 224 of the Penal Code] do not apply" to children under the age of fifteen, instead of sixteen years as currently applicable. The authors of the draft law indicate that the modification aligns the age limit with Article 156 of the Code of Criminal Procedure, which provides that "[c]hildren under the age of fifteen are heard without taking an oath." The CNPD notes that Article 22, paragraph 2, of the UN model law recommends that "[a] child witness cannot be prosecuted for perjury," without distinction of age among the minors concerned, and therefore requests the authors to clarify the reasons for this divergence. If necessary, it would be appropriate to adapt Article 156 of the Code of Criminal Procedure to align it with Article 22, paragraph 1, of the UN model law, which provides that:

"1. The president of the court or the judge may decide that the child witness will not be required to testify under oath, for example, if the child is not capable of understanding the consequences of an oath. In such cases, the president of the court or the judge may invite the child to promise to tell the truth. In either case, the court hears the testimony of the child."

IV.

Protection measures

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1. The election of domicile with a trusted person

23. According to Article 8, paragraph 1, points 1° and 5°, of the draft law, judicial authorities may, in cases of "serious danger to the minor due to their testimony or hearing," "order an election of domicile with a trusted person" and "order that no mention be made in any procedural document in criminal matters, nor in any piece of the procedure, of the domicile or residence of the minor or the civil status of the minor."

24. Regarding point 1°, the CNPD questions whether it should be understood that this refers to the same trusted person mentioned in Article 5 of the draft law. It should be noted that, even though Article 4, paragraph 2, of the draft law states that "[as far as possible, the minor is assisted by the same trusted person...]," this person "may choose at any time another trusted person." Furthermore, the CNPD wonders whether the trusted person can refuse this election of domicile at their private residence and the disclosure of said address to the accused, particularly considering the serious danger identified to justify this decision. Thus, the CNPD questions whether it would not be appropriate to provide for an election of domicile with the minor's counsel, as this would be a priori a professional address.

25. Concerning point 5°, care should be taken to ensure that this election of domicile is reflected in all documents sent to the person from whom the "serious danger" emanates so that the measure is not rendered meaningless by the inadvertent transmission of the minor's actual address. Thus, as raised by the judicial authorities in their joint opinion of September 19, 2022, "the omission of the minor's address from the file only makes sense if it is applied from the very beginning of the procedure, thus from the first police report that mentions the minor as a victim or witness. The address should be omitted in this report but communicated to the judicial authorities in a sealed envelope."

2. The protection of the minor's privacy

26. Article 2, paragraphs 3 to 5 of the UN model law, dedicated to the general principles applicable during the justice process, recommends that:

"3. Any measure that may constitute an intrusion into the child's privacy is limited to the minimum necessary, as defined by law, to gather evidence meeting high standards and ensure the fair conduct of the procedure.

4. The privacy of a child victim or witness must be protected.

5. Information likely to disclose the status of the child as a witness or victim is published only with the express permission of the court."

27. The CNPD requests that the protection of the privacy of the child victim and the child witness be more prominently emphasized in the criminal procedure. Thus, it would be preferable that the CNPD Opinion of the National Commission for Data Protection regarding draft law no. 7992

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****Procedural Acts Involving a Minor Witness or Minor Victim****

1. Procedural acts involving a minor witness or a minor victim do not systematically indicate their identity, address, and other identifying information, and such information is only made accessible to the other parties in the proceedings to the extent strictly necessary. The National Commission refers to Article 1 of the UN Model Law on the Best Interests of the Child, which states that "[...] while the rights of the accused and convicted must be preserved, every child, especially if they are a victim or witness, has the right to have their best interests considered as a priority."

2. The National Commission notes with interest the provisions introduced to limit the number of hearings of minor victims and witnesses by using audio or audiovisual recordings through various amendments to the Code of Criminal Procedure introduced by Article 17 of the draft law. It recalls that adequate technical and organizational means must be implemented to ensure the security and confidentiality of these recordings.

****3. Conditions for the Hearing of the Minor Victim or Minor Witness****

3. The CNPD welcomes that Article 190 of the Code of Criminal Procedure is supplemented by a paragraph providing that "[i]nsofar as possible, waiting rooms used by minor victims or witnesses should not be visible or accessible to the accused. A courtroom may be specially designated for this purpose by the president of the court," thus echoing Article 24 of the UN Model Law dedicated to this issue. By ensuring to limit, during hearings, the contact between minor victims and witnesses and the accused, the risks of secondary victimization can thus be reduced.

4. It notes that Article 19, paragraph 1, of Directive 2012/29/EU of the European Parliament and of the Council of October 25, 2012, establishing minimum standards on the rights, support, and protection of victims of crime seems to go further, at least for minor victims, requiring that "[m]ember States establish conditions to avoid any contact between the victim and the members of their family, where applicable, and the offender in the premises where the criminal proceedings take place, unless the criminal proceedings impose such contact."

****V. Right to Information****

5. Articles 11 and 14 of the draft law enshrine the right of the minor victim or minor witness to obtain information about their procedural rights, including the right to be accompanied, the possibility of benefiting from protective measures, and the possibility of appointing a guardian ad litem.

6. The National Commission welcomes that the draft law provides for the communication of this information also to the legal representatives of the minor and to their trusted person, and this as the proceedings progress. Furthermore, the CNPD notes that the Attorney General informs the minor ex officio when the convicted person is released or in the event of an escape.

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Thus decided in Belvaux on July 21, 2023.

The National Commission for Data Protection

Tine A. Larsen
President

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Commissioner

Alain Herrmann
Commissioner

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